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# California legislator proposes ban on food dyes linked to neurological issues

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(The Center Square) - California looks to ban more food dyes in schools linked to causing ADHD and other neurobehavioral problems and damage to children.

Assemblymember Jesse Gabriel, D-Encino, introduced AB 2316, which would ban schools from serving foods with Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, and Green 3, as well as titanium dioxide, a coloring agent that is often used in sunscreens, cosmetics, paints and plastics.

"California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Gabriel in a statement. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity and neurobehavioral harms. This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Gabriel introduced a similar bill last year, AB 418, which was signed into law and bans any food product containing Red 3 — banned in U.S. cosmetics since the 1990s — potassium bromate, brominated vegetable oil, or propyl paraben. AB 418's chemicals are banned across the European Union due to links to cancer, hyperactivity in children, reproductive issues, and thyroid and liver problems.

Neither AB 418 nor 2316 target any specific brands of food, but aim to encourage manufacturers to change their formulations to less harmful alternatives. AB 418 was also endorsed by Republican former governor and bodybuilder Arnold Schwarzenegger, who said, "I'm a small government guy. But I've also seen that sometimes, in a world where every big industry has an army of lobbyists, and our kids have no one fighting for them, government has to step in."

The Children's Environmental Health Center of the Office of Environmental Health Hazard Assessment at the California Environmental Protection Agency analyzed the chemicals that could be banned under AB 2316, reviewing "challenge studies" classified as clinical trials that placed children on dye-free diets, adding dyes to some children's' diets, and recording measures of behavior.

The Food and Drug Administration established Acceptable Daily Intakes for synthetic food dyes in the latter half of the 20th century, but California's review of food dye studies demonstrated adverse neurological outcomes with exposure levels lower than the ADIs.

Their 2021 report noted the portion of children diagnosed with ADHD increased from 6.1% to 10.2% over the past 20 years, and declared that "studies of exposure to Red No. 3, Red No. 40, Yellow No. 5, and Yellow No. 6 in adult animals reported one or more of the following effects: altered brain chemistry, changes in activity, altered learning and memory, and microscopic alterations in brain structure. Notably, most studies of adult animal neurotoxicity conducted from 2001 to 2018 reported effects at levels much lower than those reported to cause general toxicological effects in studies used as the basis of the FDA ADIs."

By banning these additives, advocates intend to improve children's learning abilities and mental functioning. Should the bill pass, popular foods ranging from Skittles to Flamin' Hot Cheetos and Takis could be removed from school vending machines and cafeterias in the absence of the manufacturer adopting new formulations.

While official opposition is yet to be filed against AB 2316, arguments against AB 418 are likely to be repeated by a similar group of food manufacturers.

In a 2023 letter opposing AB 418, a large coalition of food manufacturers and business organizations said the legislation "usurps the comprehensive food safety and approval system for ... additives ... and predetermines ongoing evaluations" and that currently legal additives "have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe."

The letter made no reference to cost and instead focused on the strength of the existing safety and regulatory practices of the federal government.

Last week in Illinois, lawmakers proposed a bill that would ban the same substances as AB 418, and, also like AB 418, not come into effect until 2027.

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